

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

JUAN RIVERA, as the Proposed Administrator of the Estate of Index No.
DANIEL RIVERA, deceased,

Plaintiff,

-against-

THE CITY OF NEW YORK, a municipal entity, and THE
NEW YORK POLICE DEPARTMENT, OFFICER MICHAEL
MENESES, OFFICER TRAVIS ANDREU, OFFICER
GUSTAVO OCHOA, OFFICER JACK LOPEZ, JOHN DOE
OFFICERS 1-10,

Defendants.

VERIFIED COMPLAINT

JURY TRIAL DEMANDED

County of Bronx

Plaintiff, JUAN RIVERA, as Proposed Administrator of the Estate of Daniel Rivera, by his
attorneys, Piro, Zinna, Cifelli, Paris & Genitempo, LLC, as and for the Complaint, alleges as follows:

PRELIMINARY STATEMENT

1. Daniel Rivera was thirty-nine years-old when he was shot by officers of the New York Police Department (“NYPD”) on December 3, 2022, in the Bronx, New York.

2. Mr. Rivera was pursued, surrounded, and severely outnumbered and posed no threat to the members of the NYPD when he was shot.

3. Mr. Rivera was caused to fear for his life in the moments prior to being shot and was consciously aware of the threat posed to him by officers of the NYPD.

4. Upon information and belief, officers discharged approximately twenty-nine bullets at Mr. Rivera, striking him in the head and lower right extremity.

5. Mr. Rivera was taken to the hospital after being shot and endured conscious pain and suffering until he succumbed from his injuries on December 4, 2022.

6. Mr. Rivera’s Estate now seeks redress pursuant to New York State Law for the injuries caused by the conduct of the City of New York, New York Police Department and the officers involved, as described herein.

JURISDICTION AND VENUE

7. This action is brought for the wrongful death of Mr. Rivera and pursuant to the common laws of the State of New York and survivorship laws permitting the Estate to recovery for the pain and suffering Mr. Rivera endured due to the negligent, careless, reckless, and gross conduct of the City of New York, NYPD, and the individual officers identified herein.

8. Venue is properly laid in the Supreme Court of the State of New York, County of the Bronx because the incident took place in Bronx County, and Defendants regularly and substantially conduct business in Bronx County. C.P.L.R. § 503 (a) and (b).

COMPLIANCE WITH NEW YORK GENERAL MUNICIPAL LAW

9. Plaintiff served a Notice of Claim upon the City of New York on February 28, 2023, within ninety days of the events giving rise to the claims contained therein.

10. On February 23, 2024, Plaintiff Juan Rivera, as Proposed Administrator of the Estate of Daniel Rivera, appeared for an examination pursuant to § 50-h of New York's General Municipal Law.

11. More than thirty days have elapsed since Plaintiff served his Notice of Claim and the City has not offered adjustment or payment thereof.

12. This action was commenced within one (1) year and ninety (90) days after all the accrual of the causes of action alleged in this complaint and the happening of the incident complained of herein.

JURY DEMAND

13. Plaintiff demands a trial by jury in this action on each and every one of his claims for which jury trial is legally available.

THE PARTIES

14. At the time of his death, Daniel Rivera resided at 907 Summit Avenue, Apartment 3, Bronx, New York 10452.

15. Juan Rivera is the brother of Daniel Rivera and Proposed Administrator of the Estate.

16. Daniel Rivera is also survived by Nelida Figueroa (Mother), Daniel Rivera (Father), Wanda Rivera (sister), Juan Rivera (brother), Yaritza Rivera (sister), Luz Rivera (sister), and his son, Julian Vizcarrondo.

17. Defendant, City of New York, (the “City”), is a municipal entity created and authorized under the laws of the State of New York.

18. The City is authorized by law to maintain a police department and does maintain the New York City Police Department (“NYPD”) which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The City assumes the risks incidental to the maintenance of a police force and the employment of police officers and detectives and, in this instance, those officer of the 30th Precinct.

19. OFFICER MICHAEL MENESES, OFFICER TRAVIS ANDREU, OFFICER GUSTAVO OCHOA, OFFICER JACK LOPEZ, are police officers with the 30th Precinct of the NYPD, located at 451 West 151st Street New York, NY, 10031, that negligently, carelessly, recklessly, and in gross disregard of department policies and procedures, discharged their weapons at Mr. Rivera, causing his death. They are sued in their individual and official capacities as NYPD Police Officers.

20. Defendants, John Doe Officers 1-10, are employees of the NYPD who unlawfully discharged their weapons on Mr. Rivera, leading to his death. They are sued in their individual and official capacities as NYPD Police Officers.

21. At all times relevant herein, the officers identified above and those fictitiously pled have acted under color of state law in the course and scope of their duties and/or functions as agents, employees, and/or officers of the City and/or the NYPD, and incidental to the lawful pursuit of their duties as agents, employees, and/or officers of the City and/or the NYPD.

STATEMENT OF FACTS

22. On or about December 3, 2022, in the evening hours, decedent, Mr. Rivera, officers of the NYPD came upon Mr. Rivera in the area of West 161st Street and Summit Avenue, Bronx, New York 10452.

23. As the investigation into the incident remains ongoing, the release of any information and

video footage has been limited by the City of New York and denied by the Attorneys General for the State of New York. Therefore, details leading up to the interaction between the NYPD officers and Mr. Rivera are based on information and belief.

24. Upon information and belief, officers of the NYPD attempted to detain, apprehend, or otherwise arrest Mr. Rivera in the above-described area of the Bronx, New York.

25. The basis for the conduct by the NYPD officers and the reasons for the attempted apprehension of Mr. Rivera are not presently known. However, it is denied that Mr. Rivera was taking part in any illegal activity of any kind that legally warranted a detainment or arrest.

26. Upon information and belief, Mr. Rivera attempted to flee or otherwise escape danger posed in the area of West 161st Street and Summit Avenue.

27. At this time, NYPD Officers Meneses, Andreu, Ochoa, and Lopez pursued Mr. Rivera into a wooded area in the vicinity of West 161st Street and Summit Avenue, Bronx, New York.

28. Upon information and belief, the above identified officers discharged at least twenty-nine (29) bullets at Mr. Rivera, striking him in the head and lower right extremity as he was surrounded and outnumbered by the officers.

29. Mr. Rivera was brought to the hospital following the shooting incident with critical injuries. He succumbed to the injuries the following day on December 4, 2023.

30. The negligent, careless, reckless, grossly negligent and purposeful shooting of Mr. Rivera violated New York state law, common law, and NYPD departmental regulations, as alleged herein.

31. At all relevant times, the Defendants, City of New York, NYPD, and the individual officers, had a duty to Mr. Rivera to carry out their respective functions as public agencies in a manner consistent with the laws of the State of New York and not to negligently, carelessly, recklessly, grossly, or purposefully interfere with the rights of Mr. Rivera.

32. The Defendants failed to do so on December 3, 2023, resulting in the death of Mr. Rivera.

FIRST CAUSE OF ACTION**(WRONGFUL DEATH)**

33. Plaintiff realleges and incorporates by reference the allegations set forth in the foregoing paragraphs as if fully set forth herein.

34. The acts of the Defendants, alleged herein, wrongfully caused the death of Daniel Rivera.

35. Plaintiff's decedent, Daniel Rivera, died on December 4, 2023, and left surviving next of kin and distributees.

36. The Estate of Daniel Rivera, became liable and did expend money for funeral and other expenses.

37. As a result of the foregoing, decedent's next of kin and distributees lost services, income, support, guidance, and companionship of the deceased and suffered pecuniary loss.

38. The damages sought herein exceed the jurisdictional limits of all lower courts which would otherwise have jurisdiction in this matter.

39. As a consequence of the wrongful death caused by Defendants, distributees of the Estate of Daniel Rivera have suffered damages in an amount to be determined at trial but which include pecuniary loss and loss of emotional support as described herein.

SECOND CAUSE OF ACTION**(SURVIVORSHIP - CONSCIOUS PAIN AND SUFFERING)**

40. Plaintiff realleges and incorporates by reference the allegations set forth in the foregoing paragraphs as if fully set forth herein.

41. The acts of the Defendants, alleged herein, wrongfully caused Plaintiff's decedent, Mr. Daniel Rivera, to suffer physical, mental, and emotional pain, following his injury from the shooting by Defendants and continuing until his death.

42. Mr. Rivera was aware of the risk to his life and imminent harm and potential death caused by the Defendants when they pursued him with weapons drawn and fired at least twenty-nine

shots at him.

43. As a direct and proximate result of this unlawful conduct of the Defendants, Plaintiff's decedent, Daniel Rivera, sustained the damages herein alleged and which would have been actionable and compensable to decedent had he not succumbed to his injuries.

44. The decedent was caused to suffer conscious pain and suffering after being shot by the Defendants and experienced pre-impact terror in the moments leading up to being shot by the NYPD officers.

THIRD CAUSE OF ACTION

(RESPONDEAT SUPERIOR)

45. Plaintiff realleges and incorporates by reference the allegations set forth in the foregoing paragraphs as if fully set forth herein.

46. At all relevant times, Officers Meneses, Andreu, Ochoa, and Lopez, were employees of the City and were acting within the scope of their employment.

47. The CITY OF NEW YORK is therefore vicariously liable under the doctrine of respondeat superior for the negligent, careless, reckless and grossly negligent actions of Defendants Officers Meneses, Andreu, Ochoa, and Lopez as set forth herein.

FOURTH CAUSE OF ACTION

(NEGLIGENCE)

48. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

49. The Defendants, jointly and severally, negligently caused injuries, emotional distress, and damage to the Plaintiff when they negligently, carelessly, recklessly, and grossly attempted apprehension of Mr. Rivera, pursued Mr. Rivera with weapons drawn, and fired upon him multiple times, striking him in the head and right lower extremity.

50. The acts and conduct of the Defendants were the direct and proximate cause of injury and damage to the Plaintiff and violated his statutory and common law rights as guaranteed by the

common laws of the State of New York.

51. As a result of the foregoing, Plaintiff suffered specific and serious bodily injury, pain and suffering, psychological and emotional injury, costs and expenses, death, and was otherwise damaged and injured.

FIFTH CAUSE OF ACTION

(NEGLIGENT HIRING, SCREENING, RETENTION, SUPERVISION AND TRAINING)

52. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

53. Defendant, City of New York, negligently hired, screened, retained, supervised, and trained Defendants, Officers Meneses, Andreu, Ochoa, and Lopez.

54. The acts and conduct of the Defendant, City, were the direct and proximate cause of injury and damage to the Plaintiff and violated common law rights as guaranteed by the laws of the State of New York.

55. Due to this negligence, Officers Meneses, Andreu, Ochoa, and Lopez were not prepared or able to carry out their duties as officers of the NYPD on December 3, 2022, leading to the shooting death of Mr. Rivera.

56. As a result of the foregoing, Plaintiff was suffered specific and serious bodily injury, pain and suffering, psychological and emotional injury, death, costs and expenses, and was otherwise damaged and injured.

SIXTH CAUSE OF ACTION

(ASSAULT)

57. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

58. On December 3, 2023, decedent, Daniel Rivera, was placed in imminent fear of physical harm as a result of the wrongful, negligent, reckless, grossly negligent, and/or purposeful conduct of the Defendants.

59. The actions of the Defendants were unwarranted and made with the intent to provoke observation of the threat of physical harm.

60. The actions did reasonably cause the decedent, Daniel Rivera, to be in fear of immediate danger.

61. Defendants were able to bring about the violence that placed decedent in fear of immediate harm.

62. As a result of the foregoing, Plaintiff was suffered specific and serious bodily injury, pain and suffering, psychological and emotional injury, death, costs and expenses, and was otherwise damaged and injured.

SEVENTH CAUSE OF ACTION

(BATTERY)

63. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

64. On December 3, 2022, Defendants did make intentional and unwarranted contact with decedent, Daniel Rivera, that was injurious and objectionable when they discharged twenty-nine (29) bullets from their guns at Mr. Rivera, striking him at least twice, in the head and the leg.

65. As a result of the foregoing, Plaintiff was suffered specific and serious bodily injury, pain and suffering, psychological and emotional injury, death, costs and expenses, and was otherwise damaged and injured.

EIGHTH CAUSE OF ACTION

(FALSE ARREST)

66. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

67. On December 3, 2022, Defendants arrested or attempted to arrest decedent, Mr. Rivera, intentionally.

68. Mr. Rivera was conscious and fully aware of the arrest and did not consent to the arrest.

69. The arrest was not otherwise privileged.

70. Decedent, Daniel Rivera, suffered physical, physiological and emotional injuries as a result.

NINTH CAUSE OF ACTION

(FALSE IMPRISONMENT)

71. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

72. On December 3, 2022, Defendants did unlawfully restrain decedent's, Daniel Rivera, movement without his consent in such a manner that restricted his freedom and prevented him from otherwise leaving.

73. Decedent, Daniel Rivera, suffered physical, physical and emotional injuries as a result in an amount to be determined at trial..

TENTH CAUSE OF ACTION

(42 U.S.C. 1983)

74. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

75. Upon information and belief, the officers who illegally arrested and battered, assaulted, and shot decedent, Rivera, were at all times relevant duly appointed and acting officers of the City of New York Police Department.

76. At all times mentioned herein, said police officers were acting under color of law, to wit: the statutes, ordinances, regulations, policies and customs and usage of the State of New York and/or City of New York.

77. Decedent, Rivera, was at all relevant time herein a citizen of the United States and resident of Bronx County in the State of New York. The Estate, on behalf of the decedent, brings this cause of action pursuant to 42 United State Code, Section 1983.

78. Defendant, City of New York, is a municipality duly incorporated under the laws of the

State of New York.

79. As described above, the Defendant officers, while effectuating seizure of decedent, seized, assaulted, battered, and ultimately shot and killed decedent in violation of his rights, without probable cause, and using unlawful and excessive force.

80. These unlawful actions amounting to a use of excessive force violated decedent's rights under the United States Constitution which also include his due process rights to life and liberty.

81. The Defendant officers deprivation of decedent's rights where done with reckless disregard or deliberate indifference to those rights and caused grievous emotional, psychological, physical injury and death.

82. Decedent, Daniel Rivera, suffered physical, physiological, and emotional injuries as a result and had his life taken far too soon.

DEMAND FOR RELIEF

WHEREFORE, Plaintiff demands the following relief against the Defendants, jointly and severally: (a) compensatory damages, including damages for pain and suffering, in an amount just and reasonable and in conformity with the evidence at trial; (b) punitive damages against the individual defendants; (c) attorneys' fees; (d) the costs and disbursements of this action; (e) interest; and (f) such other and further relief as this Court deems just and proper.

Respectfully submitted,

PIRO, ZINNA, CIFELLI, PARIS & GENITEMPO, LLC
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By: /s/ Brian M. Frankoski
Brian M. Frankoski
Attorneys for Plaintiff

VERIFICATION

BRIAN M. FRANKOSKI, being duly sworn, deposes and says:

I am an associate of the law firm of PIRO ZINNA CIFELLI PARIS AND GENITEMPO, LLC, attorneys for the PLAINTIFF herein.

I have read the foregoing Verified Complaint and know the contents thereof, and, upon information and belief, affirmant believes the matters alleged therein to be true.

The reason this verification is made by me and not by PLAINTIFF is that the PLAINTIFF herein resides in a County other than the one in which PLAINTIFF'S attorneys maintain their offices.

The source of my information and the grounds of my belief are communications, papers, reports and investigations contained in the file.

/s/ Brian M. Frankoski

BRIAN M. FRANKOSKI